

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT		1. CONTRACT ID CODE		PAGE OF PAGES	
				159	
2. AMENDMENT/MODIFICATION NO.		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQ. NO.	
0002		07/01/2025		5. PROJECT NO. (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)	
DOI, NPS, NERO & NER SOUTH MABO		PNC		CODE	
National Park Service					
Northeast Regional Contracting					
South/Philadelphia MABO					
1234 Market Street, 20th Floor					
Philadelphia PA 19107					
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)		(x)		9A. AMENDMENT OF SOLICITATION NO.	
				140P4225Q0035	
		x		9B. DATED (SEE ITEM 11)	
				07/01/2025	
				10A. MODIFICATION OF CONTRACT/ORDER NO.	
				10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE			
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS					
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.					
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.					
12. ACCOUNTING AND APPROPRIATION DATA (If required)					
13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.					
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.				
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).				
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:				
	D. OTHER (Specify type of modification and authority)				
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.					
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)					
Annual Fire Protection Inspection and Testing Services for Colonial National Historical Park (COLO).					
The purpose of this amendment is to:					
1. Update the solicitation to comply with DOI policy:					
a. Update clause 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders Commercial Products and Commercial Services (JAN 2025)					
b. Update provision 52.212-3 Offeror Representations and Certifications Commercial Products and Commercial Services (MAY 2024)					
c. Add a notice to the end of Section 4, Provisions.					
Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.					
15A. NAME AND TITLE OF SIGNER (Type or print)			16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)		
			Deborah Coles		
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA	
(Signature of person authorized to sign)				(Signature of Contracting Officer)	
				16C. DATE SIGNED	

1.0 - GENERAL INFORMATION

This is a COMBINED SYNOPSIS / SOLICITATION for commercial items prepared in accordance with the format in the Federal Acquisition Regulations (FAR) Subpart 12.6, as supplemented with additional information included in this notice. The National Park Service contemplates award of a firm fixed price contract as a result of this combined synopsis/solicitation to the vendor. This announcement constitutes the only solicitation issued as Request for Quotation (RFQ) 140P4225Q0035. A WRITTEN SOLICITATION WILL NOT BE ISSUED. FAR clauses and provisions enclosed within this RFQ are those in effect through Federal Acquisition Circular (FAC) 2025-03 and are available in full text through Internet access at <http://www.acquisition.gov/far/>.

This acquisition is in support of Colonial National Historical Park (COLO).

This is a 100% Total Small Business Set Aside. The North American Industry Classification System (NAICS) code is 561621. The small business size standard is \$16.5M.

1.1 POINT OF CONTACT

Eric Hubbell
Contract Specialist
eric_hubbell@nps.gov
(484) 269-7159

1.2 IMPORTANT DATES AND DEADLINES

Site Visit

Date/Time: 7/7/2025, 8AM-10AM EDT

Location: Maintenance yard at 10815 George Washington Memorial Hwy., Yorktown VA.

RSVP: See instructions included with [52.237-1 SITE VISIT](#) below.

Submission of Questions

Due: 12pm EDT, 7/9/2025

Due Via: Email POC above

Submission of Quotes

Due: 12pm EDT, 7/18/2025

Due Via: Email POC above

1.3 AWARD SELECTION PROCESS

Per FAR Part 13.106-2(b) evaluations will be conducted utilizing price, key personnel, and prior experience. This solicitation is not stating nor required to state the relative importance assigned to each evaluation factor and/or sub factor (FAR 13.106-1(a)(2)). Award will be made to the vendor whose quote represents the best value to the Government.

The following factors shall be evaluated:

Price: Quotes shall be ordered from lowest to highest, by “Total Evaluated Price.” The Total Evaluated Price will be evaluated by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced.. Evaluation of options shall not obligate the Government to exercise the option(s). Prices must be determined “Fair and Reasonable” in order to be considered for award.

Technical:

- The Contractor and/or proposed subcontractor must possess the ability to place all existing fire suppression or fire alarms in a test mode. This is necessary to support testing of fire and sprinkler systems.

Key Personnel: Provide certifications, resumes, and other relevant documentation necessary to demonstrate minimum qualifications listed below:

- Personnel must possess certificates of training, licenses, and permits as required by the state of Virginia or local jurisdictions where the alarm system is installed.
- Inspector of Back Flow Prevention Device must be licensed Backflow Inspector in the state of Virginia.
- Technicians must meet the service personnel qualification requirements in NFPA 25 and hold at least a NICET Level 3 certificate in Inspection and Testing of Water-Based Systems, or Special Hazards Systems, as appropriate.
- Technicians shall be factory trained and currently certified for the applicable system(s).

Prior Experience: Provide documentation demonstrating contractor and/or proposed sub-contractors' successful completion of at least three (3) projects within the last three (3) years of similar scope, skill, and technique to the specified requirements.

2.0 - INSTRUCTIONS TO OFFERORS

Quotes must be in accordance with and in the order detailed in this section. Failure to submit quotes according to the instructions provided within the solicitation may result in the respondent's quote not being considered for award.

All interested parties shall be registered in the System for Award Management or SAM at time an offer or quotation is submitted.

The offerors shall submit a quote to the contracting specialist by email to the POC listed in 1.1 POINT OF CONTACT.

Offers shall submit the following information in its entirety:

a) Checklist for quote submittal:

- ☐ This page of the solicitation completed as the first page in the package
- ☐ Signed acknowledgement of SF 18
- ☐ All amendments acknowledged using one of the methods set forth in Box 11 of the SF-30, if applicable
- ☐ Completed Provisions (including 52.204-24, 52.204-26, and others as applicable)
- ☐ Clearly identify whether documentation submitted to satisfy evaluation factors reflects the experience and/or qualifications of the potential Contractor or proposed Subcontractor.
- ☐ Provide key personnel documentation as described in section 1.3 AWARD SELECTION PROCESS.
- Three prior experiences as described in section 1.3 AWARD SELECTION PROCESS, to include:
 - ☐ Brief description of project
 - ☐ Point of contact information

b) Price Schedule

ITEM	Description	Price
1	Base Period, Annual Fire Protection Inspection and Testing services	\$
2	Option Period 1, Annual Fire Protection Inspection and Testing services	\$
4	Option Period 2, Annual Fire Protection Inspection and Testing services	\$
5	Option Period 3, Annual Fire Protection Inspection and Testing services	\$
6	Option Period 4, Annual Fire Protection Inspection and Testing services	\$
7	6 Month Extension, Annual Fire Protection Inspection and Testing services	\$

c) Contractor Core Data:

Offerors Name: _____

Offerors Address: _____

Offerors Unique Entity Identifier (UEI): _____

Offerors POC: _____

Offerors Phone/Email: _____

d) Proposed Subcontractor Core Data:

Name: _____

Address: _____

Unique Entity Identifier (UEI), if applicable: _____

POC: _____

Phone/Email: _____

3.0 - CLAUSES

FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE FEB 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: [http:// www.acquisition.gov/far/](http://www.acquisition.gov/far/)

FAR 52.203-7 ANTI-KICKBACK PROCEDURES JUN 2020

FAR 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE OCT 2018

FAR 52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE AUG 2020

FAR 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC 2014

FAR 52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES NOV 2023

FAR 52.233-3

UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS JUN 2013

FAR 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS MAR 2023

FAR 52.237-2 PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION APR 1984

FAR 52.245-1 GOVERNMENT PROPERTY SEP 2021

FAR 52.245-9 USE AND CHARGES APR 2012

FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES JAN 2025 (DEVIATION FEB 2025)

(a)The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1)52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2)52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3)52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4)52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5)52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b)The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

___ (1)52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2)52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

___ (3)52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4)52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

X (5)52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6)[Reserved].

___ (7)52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8)52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9)52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10)52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).

___ (11)(i)52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

___ (ii)Alternate I (Dec 2023) of 52.204-30.

X (12)52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

___ (13)52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

___ (14)[Reserved].

___ (15)52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

___ (16)52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

- ___ (17)[Reserved]
- _X_ (18)(i)52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___ (ii)Alternate I (Mar 2020) of 52.219-6.
- ___ (19)(i)52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___ (ii)Alternate I (Mar 2020) of 52.219-7.
- ___ (20)52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).
- ___ (21)(i)52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).
- ___ (ii)Alternate I (Nov 2016) of 52.219-9.
- ___ (iii)Alternate II (Nov 2016) of 52.219-9.
- ___ (iv)Alternate III (Jun 2020) of 52.219-9.
- ___ (v)Alternate IV (Jan 2025) of 52.219-9.
- ___ (22)(i)52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ___ (ii)Alternate I (Mar 2020) of 52.219-13.
- ___ (23)52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ___ (24)52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ___ (25)52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- _X_ (26)(i)52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ___ (ii)Alternate I (Mar 2020) of 52.219-28.
- ___ (27)52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ___ (28)52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ___ (29)52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- _X_ (30)52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- _X_ (31)52.222-3, Convict Labor (Jun 2003) (E.O. 11755).
- _X_ (32)52.222-19, Child Labor—Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).
- ___ (33)52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- ___ (34)(i)52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).
- ___ (ii)Alternate I (Feb 1999) of 52.222-26.
- _X_ (35)(i)52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- ___ (ii)Alternate I (Jul 2014) of 52.222-35.
- _X_ (36)(i)52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- ___ (ii)Alternate I (Jul 2014) of 52.222-36.
- _X_ (37)52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- ___ (38)52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- _X_ (39)(i)52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (ii)Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- _X_ (40)52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ___ (41)(i)52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii)Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42)52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

___ (43)52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

___ (44)52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

___ (45)52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

X (46)52.223-23, Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).

___ (47)(i)52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

___ (ii)Alternate I (Jan 2017) of 52.224-3.

___ (48)(i)52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

___ (ii)Alternate I (Oct 2022) of 52.225-1.

X (49)(i)52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

___ (ii)Alternate I [Reserved].

___ (iii)Alternate II (Jan 2025) of 52.225-3.

___ (iv)Alternate III (Feb 2024) of 52.225-3.

___ (v)Alternate IV (Oct 2022) of 52.225-3.

___ (50)52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

X (51)52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52)52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53)52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54)52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55)52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

___ (56)52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

___ (57)52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

___ (58)52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59)52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

___ (60)52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

___ (61)52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

___ (62)52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X (63)52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

___ (64)52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

___ (65)(i)52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

___ (ii) Alternate I (Apr 2003) of 52.247-64.

___ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

X (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

___ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

X (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

X (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

___ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

___ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1)Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i)52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii)52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii)52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv)52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v)52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi)52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A)52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

(B)Alternate I (Dec 2023) of 52.204–30.

(viii)52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix)52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x)52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(xi)52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii)52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii)52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv)52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv)52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)(A)52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B)Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii)52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii)52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix)52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx)52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi)52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)(A)52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B)Alternate I (Jan 2017) of 52.224-3.

(xxiii)52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv)52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv)52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi)52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2)While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

FAR 52.217-8 OPTION TO EXTEND SERVICES NOV 1999

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within three (3) days.

FAR 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT MAR 2000

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 64 months.

FAR 52.252-6 AUTHORIZED DEVIATION IN CLAUSES NOV 2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Interior Regulation (48 CFR, Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

DIAR 1452.201-70 AUTHORITIES AND DELEGATIONS SEP 2011

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

DIAR 1452.228-70 LIABILITY INSURANCE - DEPARTMENT OF THE INTERIOR JUL 1996

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$ 100,000 each person

\$ 500,000 each occurrence

\$ 100,000 property damage

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

DOI ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS - INVOICE PROCESSING PLATFORM (IPP) FEB 2021

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

4.0 - PROVISIONS

All interested parties shall be registered in the System for Award Management or SAM at time an offer or quotation is submitted.

FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE FEB 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov>

FAR 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION JAN 2017

FAR 52.204-7 SYSTEM FOR AWARD MANAGEMENT OCT 2018

FAR 52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING AUG 2020

FAR 52.204-17 OWNERSHIP AND CONTROL OF OFFERER AUG 2020

FAR 52.204-20 PREDECESSOR OF OFFEROR AUG 2020

FAR 52.204-22 ALTERNATIVE LINE ITEM PROPOSAL JAN 2017

FAR 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-- REPRESENTATION NOV 2015

FAR 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS OCT 2018

FAR 52.212-1 INSTRUCTION TO OFFERORS-COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES SEP 2023

FAR 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS FEB 2024

FAR 52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN - REPRESENTATION AND CERTIFICATIONS JUN 2020

FAR 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT NOV 2021

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or

other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(d) Representation. The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall

provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

FAR 52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES - REPRESENTATION OCT 2020

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) **Representations.** (1) **The Offeror represents that it [] does, [] does not** provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

FAR 52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—REPRESENTATION AND DISCLOSURES DEC 2023

(a) Definitions. As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) Prohibition. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) Procedures. (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) Disclosures. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
 - (2) Name of the covered article or source subject to a FASCSA order;
 - (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
 - (4) Brand;
 - (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
 - (6) Item description;
 - (7) Reason why the applicable covered article or the product or service is being provided or used;
 - (f) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.
- (End of provision)

FAR 52.209-11 REPRESENTATION BY CORPORATION REGARDING DELINQUENT TAX LIABILITY OR FELONY CONVICTION UNDER ANY FEDERAL LAW FEB 2016

- a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--
- (1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
 - (2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
- (b) The Offeror represents that—
- (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
 - (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months

FAR 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES MAY 2024 (DEVIATION FEB 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or

more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:_____

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246- (1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
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[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g) (1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples. (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place

of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _____.

(5) Common parent.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that–

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror–

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if–

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being

paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

FAR 52.237-1 SITE VISIT APR 1984

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost

of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

A site visit is available on the date listed in Section 1.2, IMPORTANT DATES AND DEADLINES. Interested contractors must RSVP per the contact information listed below at least 24 hours in advance.

Contracting Officer's Representative

Joseph Lamm

Joseph.Lamm@nps.gov

757-898-2440

NOTICE

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

5.0 - LIST OF ATTACHMENTS

Number	Description	Number of Pages
1	Statement of Work with Appendix A	6
2	Wage Determination	13

Colonial National Historical Park

Statement of Work Testing, Inspection & Service of Fire Suppression and Backflow Systems

June 2025

1. GENERAL

The National Park Service (NPS), Colonial National Historic Park (COLO) requires services for annual fire protection inspection and testing.

These facilities are located in the Village of Yorktown, Yorktown Maintenance area, and Jamestown. Most of the facilities contain irreplaceable historic artifacts, historic landmarks, and workspaces.

The alarm electronic control modules monitor fire smoke/heat and burglar/intrusion detection systems. Over the years, various companies have installed a variety of makes/models of equipment. Some fire and security systems share the same electronic control module while others are separate. COLO has a dispatch center in Yorktown.

2. SCHEDULE

2.1. Period of Performance

Work is to be performed for a 10-month period starting approximately in August 2025, with additional optional periods to follow:

Base Period (FY25)	August 2025 – May 2026
Option Period 1	June 2026 – May 2027
Option Period 2	June 2027 – May 2028
Option Period 3	June 2028 – May 2029
Option Period 4	June 2029 – May 2030
Optional 6-month extension	June 2030 – November 2030

2.2 Schedule of Services

The Base period shall include performance all annual, three-year and five-year inspections.

Annual Back Flow Testing and Inspection must be completed and reported to appropriate agencies by September 1 of each year.

Within 30 days of award, the Contractor shall submit to the Contracting Officer a proposed work schedule for each fire alarm system.

	Annual Inspection	Three Year Inspection	Five Year Inspection	Backflow (Domestic & Fire Suppression) Test
Base	Yes	Yes	Yes	Yes
Option 1	Yes			Yes

Option 2	Yes			Yes
Option 3	Yes	Yes		Yes
Option 4	Yes			Yes
6-month extension	Yes	Yes	Yes	Yes

The Government will conduct inspection upon completion of required services.

2.3 Business Hours

The contractor shall coordinate specific on-site work schedule, during normal business hours, with the Contracting Officer Representative and can be reached by mobile phone during normal business hours. Normal business hours are 7:00 am to 3:00 pm. Monday-Friday.

Access to COLO Buildings will require escort by park staff and must be scheduled with advance notice. At least one (1) week's notice is required in the Base Period, one (1) month's notice is required in any Option Period.

The Contractor may be required to perform some inspections and tests outside the normal working hours of the building occupants. Any scheduled work that is disruptive to the tenants (testing audible devices, elevator capture, fan shutdown, etc.) shall be performed before the building occupant's normal working hours, unless otherwise permitted by the facility manager. Buildings are typically occupied from 9AM-5PM. Testing may need to occur from 6AM-9AM to avoid disruptions on certain buildings, and all audible testing shall be conducted prior to 9AM, or before the facility opens to the public.

3. PLACE OF PERFORMANCE

See Appendix A for a list of locations and systems.

4. GENERAL REQUIREMENTS

The Contractor shall manage the total work effort in accordance with effective and efficient management principles and safe working practices to ensure on-time completion of this contract.

The Contractor shall comply with pertinent provisions of the Occupational Safety and Health Act (OSHA), and state, local, safety, laws.

The contractor shall comply with pertinent Environmental Protection Agency laws and regulations.

The Park safety officer has the authority to issue restraint or cease-and-desist orders to the contractor when violations or unsafe acts are present and threaten Government and contractor employees or damage to Government property. Upon issuance of these orders, the Contractor shall immediately contact the Contracting Officer for resolution and additional guidance.

The contractor shall immediately report to the District Representative, and COR all accidents resulting in employee injury or death or damage to property while performing this contract.

If the inspector encounters equipment that is in a condition that may endanger life or property, the inspector shall immediately notify the Ordering Official and Authority Having Jurisdiction, of the condition requiring immediate action. Within 24 hours the inspector shall provide a written report to the Ordering Official and Authority Having Jurisdiction of the hazardous condition and recommended corrective action.

4.1 Contractor Staff

The Government retains the right to request removal of the contractor's employee(s), regardless of prior clearances.

The contractor shall not employ off-duty COR's or other Government employees if such employment would create a conflict of interest or be contrary to the policies contained in conflict-of-interest directives.

5. REQUIRED SERVICES

Service shall include inspection, testing, and preventive maintenance of a variety of fire alarm and notification systems, equipment and components including manual alarm devices, smoke and heat detectors, tamper switches, pressure switches, waterflow switches, remote and graphic annunciators, main fire alarm panel and components, voice alarm system, speakers and horns and other audible and visual devices, wiring circuits and junctions, all other alarm, detection and control and ancillary devices, and emergency power operations. See section 3 for inventory.

5.1 General

Contractor shall provide all tools and supplies necessary to properly perform all annual, 3-year, 5 year, and backflow test/inspections in accordance with the latest edition of NFPA 72, National Fire Alarm and Signaling Code, and all annual preventative maintenance required by the equipment manufacturer has published instructions.

The Contractor shall:

- Ensure all results of testing and inspection are submitted to appropriate County (York & James City) Water Departments
- Report as a deficiency any/all devices that cannot be calibrated, tested, or serviced in accordance with the manufacturer's recommendations.
- Before proceeding with any testing, Contractor will coordinate the notification of all persons and facilities that receive alarm, supervisory or trouble signals. The Contractor shall contact the facility manager for assistance in coordinating any service.
- Perform all annual inspections, testing and maintenance in accordance with NFPA 25 & 72. All quarterly and semi-annual inspections/ tests shall also be performed during annual testing. Perform all 5-year inspections, testing and maintenance and Perform 3-year air leakage test on dry pipe sprinkler systems. Perform all back flow (domestic and fire) testing and inspection.
- Check the general condition of sprinkler heads. Visually check the heads for any obstructions or coatings that may hinder satisfactory activation and that there is adequate clearance around the heads to allow proper water distribution.
- Check the general condition of the sprinkler system piping, hangers and related equipment.
- Inspect fire department connection couplings, caps, threads, clappers, check valves and drain.

- Check the reserve supply of sprinkler heads for proper assortment.
- Ensure proper fire alarm signaling (supervisory and alarm conditions)
- Check all backflows: Domestic, Fire By-Pass, Fire main, and Boiler Make-up back flows.
- Leave areas where he performs work neat, clean and orderly.

5.2 Automatic Sprinkler System

Contractor will perform complete code compliant Inspection and Testing (ITM) on the automatic sprinkler system(s) listed. Annual requirements found in the current National Fire Protection Association (NFPA) 25 and manufacture requirements.

Work conducted at annual inspection shall include:

- Visual inspection of the general occupancy conditions, environment, and operations related to fire protection.
- Check for any changes in occupancy status that may affect the performance or reliability of the fire suppression systems.
- Inspect general storage and stock arrangements in relation to fire sprinkler system effectiveness.
- Inspect all sprinkler valves for proper position, general condition, accessibility and protection. Test control valves as required to insure satisfactory operation.
- Inspect control valves. Seal and tag all control valves and clean and lubricate control valve components as required.
- Inspect priming levels and air pressure on all dry pipe valves. Check and adjust as necessary.
- Drain and blow out all dry system low points equipped with valve arrangements.
- Inspect all accelerators and accessories to determine if they are in satisfactory condition.
- Inspect sprinkler control valve identification signs and security arrangements.
- Check condition of drain valves, check valve, gauges and related components.
- Instruct the Park representative on the proper operation, care and maintenance of the fire Protection equipment and system as require
- Inspect and test operation of alarm valves, flow indicators, retards and accessories for proper operation.
- Inspect and test all alarm system components for satisfactory condition. Clean and lubricate necessary.

If the inspector encounters equipment that is in a condition that may endanger life or property, the inspector shall immediately notify the Ordering Official and Authority Having Jurisdiction, of the condition requiring immediate action. Within 24 hours the inspector shall provide a written report to the Ordering Official and Authority Having Jurisdiction of the hazardous condition and recommended corrective action.

5.3 Clean Agent System FM 200

The Contractor shall perform complete code compliant Inspection and Testing (ITM) on the automatic clean agent system(s) listed to meet annual requirements based on current National Fire Protection Association (NFPA) 2001 and manufacturer requirements.

Services include the performance inspection, testing, and preventive maintenance or repair of a variety of Clean Agent systems including Enclosures, cylinders, hoses, nozzles and fire alarm systems including, equipment and components including:

- Manual alarm devices
- Smoke and heat detectors
- Remote and graphic annunciators
- Main fire alarm panel and components
- Voice alarm system
- Speakers and horns and other audible and visual devices
- Wiring circuits and junctions, all other alarm
- Detection and control and ancillary devices
- Emergency power operations

The system(s) shall be inspected and tested for proper operation per current NFPA 2001 annually.

- Discharge tests are not required.
- Cylinders shall be visually inspected.
- Each cylinder shall have a record tag attached and include date of inspection.
- All hoses will be visually inspected.

6. DELIVERABLES

Within 14 days after completing the inspection and testing, the Contractor will furnish a written record to the COR electronically via email, formatted in Microsoft Word or Excel.

This record shall be a complete report of the inspection, explaining any deficiencies, and recommend corrective action to be taken according to recognized care and maintenance standards. Any discrepancies found during annual tests shall be noted and accompanied by appropriate code section from NFPA 72 and/or manufacturer's requirements.

The report shall include the following:

- Contractor's Inspection and Testing Form that includes all the information required by NFPA 72.
- Any problems noted with the system, including inoperable or unsupervised devices or equipment, or devices that cannot be calibrated, tested, or serviced in accordance with the manufacturer's recommendations. Findings noted shall include individual costs to correct/repair them. Each cost shall be broken down into both a parts cost and a labor cost. Any / all discrepancies shall be noted and accompanied by a code citation from NFPA 72.

7. QUALIFICATIONS

The Contractor and their personnel shall meet and maintain the following qualifications:

7.1 Contractor

- Possess the ability to place all existing fire suppression or fire alarms in a test mode. This is necessary to support testing of fire and sprinkler systems.
- At all times maintain availability of a sufficient number of capable and qualified employees to enable the Contractor to properly, adequately, and safely perform all work required under the terms of this contract.
- Provide to the Contracting Officer documentation of the certificates of training, licenses, and permits for all new employees not later than seven (7) days prior to that person beginning work under the

terms of this contract. The Contractor shall ensure that all certificates of training, licenses, permits, and bonds are current and valid.

7.2 Contractor Personnel

- Personnel engaged in the activities specified by this contract shall be also required to possess certificates of training, licenses, and permits as required by the state or other local jurisdictions where the alarm system is installed.
- Inspector of Back Flow Prevention Device must be licensed Backflow Inspector in the state of Virginia
- Technicians performing contract work shall meet the service personnel qualification requirements in NFPA 25 and also hold at least a NICET Level 3 certificate in Inspection and Testing of Water-Based Systems, or Special Hazards Systems, as appropriate.
- Technicians shall be factory trained and currently certified for the applicable system and shall provide documentation of this certification to the Contracting Officer.

8. POINTS OF CONTACT

Contracting Officer's Representative

Joseph Lamm
(757) 898-2440 (Office)
(757) 272-9847 (Cell)
Joseph_Lamm@nps.gov

Alternate Onsite POC
Zach Seaton
Maintenance Mechanic
(757) 897-4599

9. REFERENCES

- Fire Protection: National Fire Protection Association (NFPA), Current (most recent) edition
- NFPA 25 – Water based fire protection systems
- NFPA 72 - National Fire Alarm Code
- NFPA 101 - Life Safety Code
- NFPA 2001 – Standard on Clean Agent Fire Extinguishing systems

APPENDIX A - Locations

#	Name	Address	System Type(s)
1	Archer Cottage	624 Water Street, Yorktown, VA 23690	(A)(C)
2	Ballard House	214 Nelson Street, Yorktown, VA 23690	(A)(C)
3	Burcher Cottage	402 Main Street, Yorktown, VA 23690	(A)(C)
4	Cole Diggs House	411 Main St, Yorktown, VA 23690	(A)(C)(D)(F)(G)
5	Dudley Diggs House	605 Main Street, Yorktown, VA 23690	(A)(C)
6	Edmund Smith House	208 Nelson Street, Yorktown, VA 23690	(A)(C)
7	Glass House Factory Support Bldg (Harrington House/Eastern National)	1353 Colonial Parkway, Jamestown, VA 23081	(A)(C)(D)(G)(I)
8	Hamilton House	213 Ballard St, Yorktown, VA 23690	(A)(C)(D)(F)(G)
9	Hogge House	200 Main Street, Yorktown, VA 23690	(A)(C)
10	Jamestown Historic Research Center	1365 Colonial Parkway, Jamestown, VA 23081	(A)(C)(D)(G)(I)
11	Jamestown Maintenance Area	1332 Colonial Parkway Jamestown, VA 23081	(I) (2 Back Flow)
12	Jamestown Visitor Center	1368 Colonial Parkway, Jamestown, VA 23081	(A)(C)(D)(G)(I)
13	Medical Shop	307 Main St, Yorktown, VA 23690	(A)(C)
14	Moore House	106 Hamilton Road, Yorktown, VA 23690	(A)(B)(C)
15	Moore House Outside Kitchen	106 Hamilton Road, Yorktown, VA 23690	(A)(C)
16	Neck-O-Land Visitor Center	1335 Colonial Parkway, Jamestown, VA 23081	(A)(C)(G)(I)
17	Nelson House	508 Main Street, Yorktown, VA 23690	(A)(C)
18	Poor Potters Kiln Shelter	221 Read St, Yorktown, VA 23690	(A)(C)
19	Swan Tavern	300 Main Street, Yorktown, VA 23690	(A)(C)
20	Swan Tavern Kitchen	300 Main Street, Yorktown, VA 23690	(A)(C)
21	Yorktown Curatorial Storage Bldg	10811 George Washington Memorial Hwy, Yorktown, VA 23690	(A)(C)
22	Yorktown Collections Bldg	10809 George Washington Memorial Hwy, Yorktown, VA 23690	(A)(C)(D)(G)(I)
23	Yorktown Visitor Center (Split system)	1000 Colonial Parkway, Yorktown, VA 23690	(A)(C)(D)(E)(F)(G)(H)

(A)Intrusion (Not Included in this contract)

(B)Fixed Fire Suppression System (FM200)

(C)Fire Alarm System

(D)Fire Sprinkler System

(E)Fire Pumps

(F) Fire by-pass backflow

(G) Fire Main Backflow

(H) Boiler Make-up backflow

(I) Domestic Backflow

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-4341 Revision No.: 30 Date Of Last Revision: 04/25/2025

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

States: North Carolina, Virginia

Area: North Carolina Counties of Currituck, Gates
Virginia Counties of Chesapeake, Gloucester, Hampton, Isle of Wight, James City, Mathews, Newport News, Norfolk, Poquoson, Portsmouth, Suffolk, Virginia Beach, Williamsburg, York

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.92
01012 - Accounting Clerk II		20.12
01013 - Accounting Clerk III		22.50
01020 - Administrative Assistant		32.04
01035 - Court Reporter		23.33
01041 - Customer Service Representative I		14.66***
01042 - Customer Service Representative II		15.99***
01043 - Customer Service Representative III		17.95
01051 - Data Entry Operator I		15.80***
01052 - Data Entry Operator II		17.23***
01060 - Dispatcher, Motor Vehicle		22.18
01070 - Document Preparation Clerk		15.83***
01090 - Duplicating Machine Operator		15.83***

01111 - General Clerk I	16.45***
01112 - General Clerk II	17.94
01113 - General Clerk III	20.13
01120 - Housing Referral Assistant	23.97
01141 - Messenger Courier	18.48
01191 - Order Clerk I	17.93
01192 - Order Clerk II	19.56
01261 - Personnel Assistant (Employment) I	18.72
01262 - Personnel Assistant (Employment) II	20.94
01263 - Personnel Assistant (Employment) III	23.35
01270 - Production Control Clerk	30.09
01290 - Rental Clerk	18.43
01300 - Scheduler, Maintenance	19.23
01311 - Secretary I	19.23
01312 - Secretary II	21.51
01313 - Secretary III	23.97
01320 - Service Order Dispatcher	19.83
01410 - Supply Technician	32.04
01420 - Survey Worker	18.14
01460 - Switchboard Operator/Receptionist	16.67***
01531 - Travel Clerk I	16.68***
01532 - Travel Clerk II	18.72
01533 - Travel Clerk III	20.51
01611 - Word Processor I	16.56***
01612 - Word Processor II	18.59
01613 - Word Processor III	20.79
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	25.82
05010 - Automotive Electrician	23.82
05040 - Automotive Glass Installer	22.59
05070 - Automotive Worker	22.59
05110 - Mobile Equipment Servicer	20.36
05130 - Motor Equipment Metal Mechanic	25.00
05160 - Motor Equipment Metal Worker	22.59
05190 - Motor Vehicle Mechanic	25.00
05220 - Motor Vehicle Mechanic Helper	19.18
05250 - Motor Vehicle Upholstery Worker	21.46
05280 - Motor Vehicle Wrecker	22.59
05310 - Painter, Automotive	23.82
05340 - Radiator Repair Specialist	22.59
05370 - Tire Repairer	17.34***
05400 - Transmission Repair Specialist	25.00
07000 - Food Preparation And Service Occupations	
07010 - Baker	14.77***
07041 - Cook I	17.88
07042 - Cook II	19.82
07070 - Dishwasher	13.76***
07130 - Food Service Worker	14.98***
07210 - Meat Cutter	19.08
07260 - Waiter/Waitress	14.72***
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	28.37
09040 - Furniture Handler	15.20***
09080 - Furniture Refinisher	21.32
09090 - Furniture Refinisher Helper	17.16***
09110 - Furniture Repairer, Minor	19.21
09130 - Upholsterer	22.19
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.05***
11060 - Elevator Operator	15.14***
11090 - Gardener	20.98
11122 - Housekeeping Aide	15.14***
11150 - Janitor	15.14***
11210 - Laborer, Grounds Maintenance	17.50***
11240 - Maid or Houseman	14.39***

11260 - Pruner	16.03***
11270 - Tractor Operator	19.78
11330 - Trail Maintenance Worker	17.50***
11360 - Window Cleaner	16.53***
12000 - Health Occupations	
12010 - Ambulance Driver	20.43
12011 - Breath Alcohol Technician	21.51
12012 - Certified Occupational Therapist Assistant	34.69
12015 - Certified Physical Therapist Assistant	34.36
12020 - Dental Assistant	22.42
12025 - Dental Hygienist	45.47
12030 - EKG Technician	36.53
12035 - Electroneurodiagnostic Technologist	36.53
12040 - Emergency Medical Technician	20.43
12071 - Licensed Practical Nurse I	23.47
12072 - Licensed Practical Nurse II	26.26
12073 - Licensed Practical Nurse III	29.27
12100 - Medical Assistant	18.71
12130 - Medical Laboratory Technician	26.57
12160 - Medical Record Clerk	21.28
12190 - Medical Record Technician	23.80
12195 - Medical Transcriptionist	18.19
12210 - Nuclear Medicine Technologist	46.27
12221 - Nursing Assistant I	13.05***
12222 - Nursing Assistant II	14.68***
12223 - Nursing Assistant III	16.02***
12224 - Nursing Assistant IV	17.98
12235 - Optical Dispenser	24.66
12236 - Optical Technician	20.83
12250 - Pharmacy Technician	20.29
12280 - Phlebotomist	19.78
12305 - Radiologic Technologist	35.29
12311 - Registered Nurse I	26.81
12312 - Registered Nurse II	32.80
12313 - Registered Nurse II, Specialist	32.80
12314 - Registered Nurse III	39.68
12315 - Registered Nurse III, Anesthetist	39.68
12316 - Registered Nurse IV	47.56
12317 - Scheduler (Drug and Alcohol Testing)	32.54
12320 - Substance Abuse Treatment Counselor	27.68
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	24.76
13012 - Exhibits Specialist II	30.69
13013 - Exhibits Specialist III	37.20
13041 - Illustrator I	25.87
13042 - Illustrator II	32.05
13043 - Illustrator III	39.22
13047 - Librarian	35.79
13050 - Library Aide/Clerk	17.34***
13054 - Library Information Technology Systems Administrator	32.05
13058 - Library Technician	18.63
13061 - Media Specialist I	23.13
13062 - Media Specialist II	25.87
13063 - Media Specialist III	28.85
13071 - Photographer I	18.36
13072 - Photographer II	21.89
13073 - Photographer III	27.12
13074 - Photographer IV	31.12
13075 - Photographer V	37.65
13090 - Technical Order Library Clerk	21.76
13110 - Video Teleconference Technician	24.51
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.79
14042 - Computer Operator II	21.01

14043 - Computer Operator III	23.42
14044 - Computer Operator IV	26.03
14045 - Computer Operator V	28.83
14071 - Computer Programmer I (see 1)	25.93
14072 - Computer Programmer II (see 1)	
14073 - Computer Programmer III (see 1)	
14074 - Computer Programmer IV (see 1)	
14101 - Computer Systems Analyst I (see 1)	
14102 - Computer Systems Analyst II (see 1)	
14103 - Computer Systems Analyst III (see 1)	
14150 - Peripheral Equipment Operator	18.79
14160 - Personal Computer Support Technician	26.03
14170 - System Support Specialist	28.83
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	33.58
15020 - Aircrew Training Devices Instructor (Rated)	40.63
15030 - Air Crew Training Devices Instructor (Pilot)	48.71
15050 - Computer Based Training Specialist / Instructor	33.58
15060 - Educational Technologist	40.49
15070 - Flight Instructor (Pilot)	48.71
15080 - Graphic Artist	29.22
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	48.71
15086 - Maintenance Test Pilot, Rotary Wing	48.71
15088 - Non-Maintenance Test/Co-Pilot	48.71
15090 - Technical Instructor	28.53
15095 - Technical Instructor/Course Developer	34.90
15110 - Test Proctor	23.03
15120 - Tutor	23.03
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	14.40***
16030 - Counter Attendant	14.40***
16040 - Dry Cleaner	16.56***
16070 - Finisher, Flatwork, Machine	14.40***
16090 - Presser, Hand	14.40***
16110 - Presser, Machine, Drycleaning	14.40***
16130 - Presser, Machine, Shirts	14.40***
16160 - Presser, Machine, Wearing Apparel, Laundry	14.40***
16190 - Sewing Machine Operator	17.26***
16220 - Tailor	17.95
16250 - Washer, Machine	15.17***
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	26.66
19040 - Tool And Die Maker	31.95
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	22.38
21030 - Material Coordinator	30.09
21040 - Material Expediter	30.09
21050 - Material Handling Laborer	18.53
21071 - Order Filler	16.74***
21080 - Production Line Worker (Food Processing)	22.38
21110 - Shipping Packer	19.25
21130 - Shipping/Receiving Clerk	19.25
21140 - Store Worker I	16.44***
21150 - Stock Clerk	20.60
21210 - Tools And Parts Attendant	22.38
21410 - Warehouse Specialist	22.38
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	38.30
23019 - Aircraft Logs and Records Technician	31.28
23021 - Aircraft Mechanic I	36.45
23022 - Aircraft Mechanic II	38.30
23023 - Aircraft Mechanic III	40.09
23040 - Aircraft Mechanic Helper	27.99
23050 - Aircraft, Painter	34.75
23060 - Aircraft Servicer	31.28

23070 - Aircraft Survival Flight Equipment Technician	34.75
23080 - Aircraft Worker	32.92
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	32.92
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	36.45
23110 - Appliance Mechanic	26.58
23120 - Bicycle Repairer	24.55
23125 - Cable Splicer	32.15
23130 - Carpenter, Maintenance	23.70
23140 - Carpet Layer	27.22
23160 - Electrician, Maintenance	29.23
23181 - Electronics Technician Maintenance I	29.66
23182 - Electronics Technician Maintenance II	31.31
23183 - Electronics Technician Maintenance III	32.84
23260 - Fabric Worker	25.87
23290 - Fire Alarm System Mechanic	26.45
23310 - Fire Extinguisher Repairer	24.55
23311 - Fuel Distribution System Mechanic	33.28
23312 - Fuel Distribution System Operator	27.11
23370 - General Maintenance Worker	22.43
23380 - Ground Support Equipment Mechanic	36.45
23381 - Ground Support Equipment Servicer	31.28
23382 - Ground Support Equipment Worker	32.92
23391 - Gunsmith I	24.55
23392 - Gunsmith II	27.22
23393 - Gunsmith III	30.14
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.11
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.59
23430 - Heavy Equipment Mechanic	29.68
23440 - Heavy Equipment Operator	23.97
23460 - Instrument Mechanic	32.70
23465 - Laboratory/Shelter Mechanic	28.74
23470 - Laborer	18.53
23510 - Locksmith	26.33
23530 - Machinery Maintenance Mechanic	30.32
23550 - Machinist, Maintenance	30.91
23580 - Maintenance Trades Helper	18.52
23591 - Metrology Technician I	32.70
23592 - Metrology Technician II	34.36
23593 - Metrology Technician III	35.96
23640 - Millwright	29.08
23710 - Office Appliance Repairer	25.03
23760 - Painter, Maintenance	21.70
23790 - Pipefitter, Maintenance	29.34
23810 - Plumber, Maintenance	27.97
23820 - Pneudraulic Systems Mechanic	30.14
23850 - Rigger	30.23
23870 - Scale Mechanic	27.22
23890 - Sheet-Metal Worker, Maintenance	29.71
23910 - Small Engine Mechanic	21.16
23931 - Telecommunications Mechanic I	29.09
23932 - Telecommunications Mechanic II	30.54
23950 - Telephone Lineman	32.68
23960 - Welder, Combination, Maintenance	30.59
23965 - Well Driller	29.66
23970 - Woodcraft Worker	30.14
23980 - Woodworker	24.55
24000 - Personal Needs Occupations	
24550 - Case Manager	19.13
24570 - Child Care Attendant	13.62***
24580 - Child Care Center Clerk	16.98***
24610 - Chore Aide	13.36***

24620 - Family Readiness And Support Services Coordinator	19.13
24630 - Homemaker	19.13
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	31.14
25040 - Sewage Plant Operator	25.96
25070 - Stationary Engineer	31.14
25190 - Ventilation Equipment Tender	23.89
25210 - Water Treatment Plant Operator	25.96
27000 - Protective Service Occupations	
27004 - Alarm Monitor	23.40
27007 - Baggage Inspector	18.18
27008 - Corrections Officer	24.40
27010 - Court Security Officer	26.21
27030 - Detection Dog Handler	20.34
27040 - Detention Officer	24.40
27070 - Firefighter	28.02
27101 - Guard I	18.18
27102 - Guard II	20.34
27131 - Police Officer I	26.13
27132 - Police Officer II	29.04
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	16.12***
28042 - Carnival Equipment Repairer	17.11***
28043 - Carnival Worker	13.05***
28210 - Gate Attendant/Gate Tender	20.36
28310 - Lifeguard	14.67***
28350 - Park Attendant (Aide)	22.78
28510 - Recreation Aide/Health Facility Attendant	16.63***
28515 - Recreation Specialist	28.23
28630 - Sports Official	18.15
28690 - Swimming Pool Operator	19.26
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	30.70
29020 - Hatch Tender	30.70
29030 - Line Handler	30.70
29041 - Stevedore I	29.17
29042 - Stevedore II	32.41
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.76
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	32.25
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	35.51
30021 - Archeological Technician I	19.51
30022 - Archeological Technician II	21.83
30023 - Archeological Technician III	27.05
30030 - Cartographic Technician	27.05
30040 - Civil Engineering Technician	28.45
30051 - Cryogenic Technician I	29.95
30052 - Cryogenic Technician II	33.08
30061 - Drafter/CAD Operator I	19.51
30062 - Drafter/CAD Operator II	21.83
30063 - Drafter/CAD Operator III	24.34
30064 - Drafter/CAD Operator IV	29.95
30081 - Engineering Technician I	19.81
30082 - Engineering Technician II	22.24
30083 - Engineering Technician III	24.87
30084 - Engineering Technician IV	30.81
30085 - Engineering Technician V	37.68
30086 - Engineering Technician VI	45.59
30090 - Environmental Technician	25.87
30095 - Evidence Control Specialist	27.05
30210 - Laboratory Technician	23.12
30221 - Latent Fingerprint Technician I	28.48
30222 - Latent Fingerprint Technician II	31.45
30240 - Mathematical Technician	35.52

30361 - Paralegal/Legal Assistant I	22.65
30362 - Paralegal/Legal Assistant II	28.06
30363 - Paralegal/Legal Assistant III	34.34
30364 - Paralegal/Legal Assistant IV	41.53
30375 - Petroleum Supply Specialist	33.08
30390 - Photo-Optics Technician	27.05
30395 - Radiation Control Technician	33.08
30461 - Technical Writer I	26.31
30462 - Technical Writer II	32.18
30463 - Technical Writer III	38.93
30491 - Unexploded Ordnance (UXO) Technician I	29.72
30492 - Unexploded Ordnance (UXO) Technician II	35.95
30493 - Unexploded Ordnance (UXO) Technician III	43.09
30494 - Unexploded (UXO) Safety Escort	29.72
30495 - Unexploded (UXO) Sweep Personnel	29.72
30501 - Weather Forecaster I	29.95
30502 - Weather Forecaster II	36.43
30620 - Weather Observer, Combined Upper Air Or	(see 2) 24.34
Surface Programs	
30621 - Weather Observer, Senior	(see 2) 27.05
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.95
31020 - Bus Aide	17.48***
31030 - Bus Driver	22.08
31043 - Driver Courier	17.61***
31260 - Parking and Lot Attendant	14.16***
31290 - Shuttle Bus Driver	16.99***
31310 - Taxi Driver	14.88***
31361 - Truckdriver, Light	18.68
31362 - Truckdriver, Medium	19.68
31363 - Truckdriver, Heavy	23.57
31364 - Truckdriver, Tractor-Trailer	23.57
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.53***
99030 - Cashier	13.83***
99050 - Desk Clerk	14.45***
99095 - Embalmer	30.76
99130 - Flight Follower	29.72
99251 - Laboratory Animal Caretaker I	16.07***
99252 - Laboratory Animal Caretaker II	17.07***
99260 - Marketing Analyst	31.22
99310 - Mortician	30.76
99410 - Pest Controller	18.68
99510 - Photofinishing Worker	15.62***
99710 - Recycling Laborer	23.39
99711 - Recycling Specialist	26.50
99730 - Refuse Collector	21.31
99810 - Sales Clerk	14.32***
99820 - School Crossing Guard	17.38***
99830 - Survey Party Chief	25.34
99831 - Surveying Aide	15.82***
99832 - Surveying Technician	23.04
99840 - Vending Machine Attendant	18.05
99841 - Vending Machine Repairer	21.24
99842 - Vending Machine Repairer Helper	18.05

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into

with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.36 per hour, up to 40 hours per week, or \$214.40 per week or \$929.07 per month

HEALTH & WELFARE EO 13706: \$4.93 per hour, up to 40 hours per week, or \$197.20 per week, or \$854.53 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 8 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."